the defendant, Navid Saberi, and his brother Saeid Saberi, it learned of facts to support piercing the corporate veil and holding those individuals liable on the grounds of unjust enrichment. The defendants resisted on the grounds that, *inter alia*, the limitation period respecting those new claims was statutorily barred.

50. CJSC Smith found that it was not until the discoveries of the Saberi brothers that the plaintiff learned that their respective companies may not have been operating at arm's-length, and that "there may be evidence that would support a claim to pierce the corporate veils of these corporations."[32] In this case, however, the applicants knew by 2015 or 2016 that 176 NSL and Arichat Metal may not be operating at arm's length. The evidence shows that that the entities were involved in a transaction and that their principals were working together. Although the applicants did not learn for *certain* that 176 NSL had no assets upon which to recover until Mr. Boucher was discovered in December 2019, unlike the case of *Rona*, the applicants had much more than a suspicion upon which to ground their claim against the AMF Respondents before February 7, 2018.

b) The applicants' claim against the AMF Respondents is statutorily barred and summary judgment should be issued

51. The date of discoverability under s. 8(1)(a) of the *LAA* in this case is no later than December 20, 2016 – over three years before the notice of application in court was filed on February 7, 2020. The applicants have not met their burden of proof under s. 9(1) of the Act to show otherwise. None of the exceptions to the general limitation period under the Act applies in this case. As confirmed by McDougall J. in *Halef*:

> 36 If the Plaintiff cannot prove the limitation period had not expired before he filed his Statement of Claim on March 3, 2021, he has no real chance of success in his action, and summary judgment should be issued in favor of the Defendants.

52. Therefore, we respectfully submit that there are no material facts in issue in this case; the applicants have no real chance of success against the AMF Respondents due to the limitation period expiring prior to their filing of the notice of application in court on February 7, 2020. The answer to the first question under the test in *Shannex* is no.

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32 *Rona*, para 47.